DOCUMENT TITLE:

Affidavit of Bruce Arnott - August 12, 2020

DOCUMENT CATEGORY (Circle One):

PLEADINGS

MOTIONS

FACTA/BRIEFS – MOTIONS

FACTA/BRIEFS – APPLICATIONS

FACTA/BRIEFS - APPEALS

DOCUMENT TYPE (Circle One):

PLEADING

MOTION

FACTUM

ORDER

Court File No. M51687

COURT OF APPEAL FOR ONTARIO

B E T W E E N:

SHU HE HUANG, by her Litigation Guardian, the Public Guardian and Trustee and JIE WEI PAN

Plaintiff
(Appellant)

- and -

ANCIETO M. BRAGA

Defendant
(Respondent)

AFFIDAVIT OF BRUCE ARNOTT

(sworn August 12, 2020)

I, BRUCE ARNOTT, of the City of Toronto, in the Province of Ontario, MAKE OATH AND SAY:

1. I am the Director of Legal Services and a Deputy Public Guardian and Trustee at the Office of the Public Guardian and Trustee ("OPGT"). I have delegated authority to instruct counsel in proceedings involving the Public Guardian and Trustee ("PGT") as litigation guardian, and I instructed counsel in matters pertaining to the litigation guardianship file maintained by the OPGT in respect of Shu He Huang. Unless otherwise stated, my knowledge of

the matters deposed to herein is based on my review of the OPGT's file and discussions with in-house counsel with carriage of the matter from time to time.

AUTHORITY OF THE PUBLIC GUARDIAN AND TRUSTEE

2. The Public Guardian and Trustee ("PGT") is Ms. Huang's court-appointed litigation guardian in three actions that were ordered to be tried together: 02-CV-223298CM3 (the underlying action), 06-CV- 316408PD1 (*Huang v Aviva and Fine, et al*) and CV-13-483927 (*Huang v Aviva*). Attached and marked as Exhibit "A" is a copy of the Order of Justice Archibald dated October 11, 2016.

3. As Ms. Huang's litigation guardian, the PGT settled the three actions. A judge of the Superior Court of Justice reviewed and approved the settlement as required by Rule 7.08 of the *Rules of Civil Procedure*. Attached and collectively marked as Exhibit "B" are true copies of the Partial Judgment of Justice Chalmers dated February 11, 2020; the Further Partial Judgment of Justice Chalmers dated March 27, 2020; and the Judgment of Justice Chalmers dated May 28, 2020.

4. The scope of the PGT's authority in respect of Ms. Huang is limited to acting as her litigation guardian in the three actions; the PGT is not Ms. Huang's guardian of property or guardian of the person.

THE PARTIES TO THIS MOTION AND APPEAL

5. Ms. Huang, as a self-represented litigant and without the involvement of her litigation guardian, is seeking leave to appeal the Rule 7.08 Judgments. Attached and marked as Exhibit "C" is a copy of Ms. Huang's Notice of Appeal dated June 23, 2020.

6. The plaintiff Jie Wei Pan is Ms. Huang's mother. Ms. Pan died in 2011 and her action was subsequently dismissed.

7. Ancieto M. Braga is the only defendant named by Ms. Huang as a Respondent in this motion and appeal. I understand that Ms. Huang did not serve all the relevant parties, including the defendants Lawrence Harvey Fine and Jewell Law (formerly named Jewell Michael & Obradovich) and Aviva Insurance. This is not the first time Ms. Huang failed to serve all the defendants.

CHRONOLOGY OF PROCEEDINGS

8. This matter has a long history arising from a motor vehicle accident that occurred on January 24, 2000.

9. The original cause of action was commenced in 2002. The second cause of action for accident benefits was commenced in 2006. The third cause of action for further accident benefits was issued in 2013. A fourth cause of action against the Plaintiff's first set of counsel was stayed by Justice Archibald in 2015.

10. Over the years, Ms. Huang was represented by at least five lawyers and the actions were subject to a number of motions, including motions for delay as well as pre-trial conferences and trial management.

11. On September 20, 2016, Justice Archibald ordered Ms. Huang to attend a capacity assessment. Louise Silverston, a designated capacity assessor, conducted the assessment and concluded that Ms. Huang lacked litigation capacity. Attached and marked as Exhibit "D" is a copy of Ms. Silverston's Report dated September 23, 2016.

12. On October 11, 2016, Justice Archibald found Ms. Huang to be a person under disability and appointed the PGT as her litigation guardian. See Justice Archibald's Order at Exhibit A.

13. Ms. Huang was unsuccessful in her many attempts to appeal the PGT's appointment as her litigation guardian:

(a) First appeal: Ms. Huang attempted to appeal Justice Archibald's Order directly with the Court of Appeal. The appeal was quashed on March 17, 2017 on the basis that it was interlocutory and brought in the wrong court. Attached and marked as Exhibit "E" is a copy of the Endorsement of Justices Epstein, Benotto, and Trotter dated March 17, 2017.

(b) Second appeal: Ms. Huang brought a motion in writing to the Divisional Court seeking leave to appeal Justice Archibald's Order. The motion was dismissed by Justice Kurke on June 21, 2017. Attached and marked as Exhibit "F" is a copy of the Endorsement of Justice Kurke dated June 21, 2017.

(c) Third appeal: I understand from material previously filed by the defendant that Ms. Huang tried to appeal Justice Kurke's Order, but her motion for leave to appeal was not permitted to be filed by the Divisional Court or Court of Appeal as orders denying leave to appeal are not appealable. Attached and marked as Exhibit "G" is a copy of the Affidavit of Diana Romano Reid sworn November 21, 2018 (without exhibits) at paragraph 13.

(d) Fourth appeal: On June 8, 2018, Ms. Huang attempted to appeal Justice Kurke's decision by way of a judicial review. The application for judicial review was dismissed by Justice Swinton pursuant to Rule 2.1.01 on the basis that it was frivolous, vexatious, and an abuse of process. Attached and marked as Exhibit "H" is a copy of the Order of Justice Swinton dated July 24, 2018.

(e) Fifth appeal: Ms. Huang brought a motion before this Court on November 28, 2018 seeking an extension of time to appeal Justice Swinton's order dismissing her application for judicial review. Ms. Huang's motion was dismissed by Justice Lauwers. Attached and marked as Exhibit "I" is a copy of Justice Lauwers' Reasons for Decision dated December 6, 2018.

(f) Sixth appeal: On January 2, 2019, Ms. Huang delivered a notice of motion seeking an extension of time to have Justice Lauwers' decision reviewed. The defendant brought a cross-motion seeking to bar Ms. Huang from bringing further motions or appeals in this Court without leave of a judge. Justice Hourigan dismissed Ms. Huang's motion and adjourned the cross-motion. Justice Rouleau subsequently granted the defendant's cross-motion finding that "the requirements of rule 37.16 have been met. Ms. Huang's numerous motions and appeals are abusive of the court's process." Attached and marked collectively as Exhibit "J" are copies of the Endorsement of Justice Rouleau dated April 2, 2019, a transcription of the Endorsement prepared by the OPGT, and the Order of Justice Rouleau dated April 8, 2019.

14. The findings with respect to Ms. Huang's status as a party under disability in the underlying proceedings are still in effect.

SETTLEMENT OF THE ACTIONS

15. Following his appointment, the PGT engaged Jasmine Daya of Jasmine Daya & Co (formerly Fireman Daya & Co) to provide an independent legal opinion on an existing offer to settle made by the defendants for the sum of $1 million. The PGT subsequently retained Ms. Daya to represent Ms. Huang by her litigation guardian to finalize the proceeding.

16. Ms. Daya informed the OPGT of the strengths and weaknesses of Ms. Huang's claim and recommended that the PGT accept the defendants' offer. I accordingly instructed Ms. Daya to settle Ms. Huang's claims for the sum of $1 million, subject to court approval.

17. The instructions that I gave with respect to the settlement are in the PGT's Rule 7.08 Motion Record. Rather than re-file that voluminous record in its entirety, I attach only my Litigation Guardian Affidavit and the Solicitor's Affidavit, sworn by Ms. Daya, without exhibits. A supplementary Affidavit sworn by Ms. Daya and filed under seal is not attached. Attached and collectively marked as Exhibit "K" are true copies of the Affidavit of Bruce Arnott and the Affidavit of Jasmine Daya sworn September 17, 2019 (without exhibits).

18. Justice Chalmers approved the settlement. See Justice Chalmers' Judgments at Exhibit B.

THIS MOTION AND APPEAL

19. The PGT, in his capacity as Ms. Huang's court-appointed litigation guardian in the underlying proceeding, did not bring this motion or commence this appeal and does not support it.

20. I maintain my view that the court-approved settlement is in the best interests of Ms. Huang and should not be disturbed.

21. The PGT is entitled by statute to charge fees for legal services. I instructed counsel assigned to this matter to write down her fees in respect of this motion; Ms. Huang's bests interest would be served by using her settlement funds to meet her health care and living expenses rather than incurring exposure to further costs.

SWORN BEFORE ME in the City of Toronto in the Province of Ontario this 12th day of August, 2020.

A Commissioner for Taking Affidavits
H. HOGAN
BARRISTER + SOLICITOR
LSO#61876W

BRUCE ARNOTT

Bruce Arnott, LSUC # 26789S
Director, Legal Services
Office of the Public Guardian and Trustee

SHU HE HUANG,
Plaintiff (Appellant)

- and -

ANCIETO M. BRAGA
Defendant (Respondent)

Court file number: M51687

COURT OF APPEAL FOR ONTARIO

Proceeding commenced at Toronto

AFFIDAVIT OF BRUCE ARNOTT
(sworn August 12, 2020)

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